

generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency.”).

This Motion Does not Prejudice any Party to the Special Administrator Dispute

This case is an interpleader matter where Plaintiff, a disinterested party who is a holder of Decedent Defendant Nickolai Popov’s money market account, is seeking to be discharged from liability for the account which is the subject of multiple adverse claims and deposit the funds with the Court to allow the adverse parties to resolve their claims regarding the subject account.

A stay would delay Plaintiff’s case and prejudice Plaintiff by forcing a uninterested party to remain in active court litigation when Plaintiff is actively taking the necessary steps to properly remove itself from a conflict between third parties.

On the other hand, Defendant Alexander Popov shows no prejudice to him or any other Defendant if Plaintiff’s interpleader proceeds. Significantly, adverse claimants cannot prevent a stakeholder from being discharged by claiming the funds should have been paid to them. (*Pacific Loan Mgmt. Corp. v. Superior Court* (1987) 196 Cal.App.3d 1485, 1489-1490 [“It is the stakeholder’s avowed disinterest in the interpleaded proceeds which gives him the right to interplead.”]). If a stay is later appropriate once the funds are interpled, the Court can reconsider if a stay is appropriate.

Denying the motion to stay would also allow the Court to keep its docket flowing free from an unnecessary stagnant case which would in turn promote judicial efficiency. On balance all of the equities cut in favor of denying the motion to stay.

Conclusion

As analyzed above, **Defendant Alexander Popov’s Motion to Stay is denied.**

5. 9:00 AM CASE NUMBER: C25-00229
CASE NAME: UMPQUA BANK, AN OREGON STATE-CHARTED BANK VS. NICKOLAI POPOV
***HEARING ON MOTION IN RE: SUBSTITUTION OF PARTY FILED BY UMPQUA BANK, AN OREGON STATE-CHARTERED BANK**
FILED BY:
TENTATIVE RULING:

Introduction

Plaintiff Umpqua Bank (“Plaintiff”) filed a Motion for Substitution (“Motion For Substitution”) on this matter on May 21, 2025. The Motion to Stay was initially set for hearing on August 11, 2025.

Procedural Background

At the August 11, 2025, hearing, this Court was inclined to grant Plaintiff Umpqua Bank’s motion to substitute Michael Popov, in his capacity as Special Administrator of the estate of Nickolai Popov, in place of deceased defendant Nikolai Popov, but continued the hearing to November 03, 2025, out of an abundance of caution to await the outcome of the Probate Court hearing regarding the special administrator scheduled for October 15, 2025..

On September 11, 2025, Counsel for defendant Alexander Popov filed a status update for Probate Case No: P25-00516. The status update requested a continuance of a hearing date from the Probate Court for the Parties to coordinate mediation for a global settlement of all four related cases (C25-

00229; C24-01939; P25-00516; and P25-00495) which was set to take place on October 15, 2025. The Probate Court in a minute order dated September 25, 2025, continued the October 15, 2025, Motion to Set Aside the Appointment of Special Administrator to December 16, 2025.

At the November 03, 2025, hearing, this Court continued this hearing to January 12, 2026, to have the benefit of the ruling for the December 16, 2025, Motion to Set Aside the Appointment of Special Administrator.

On December 16, 2025, the Probate Court filed a temporary order assigning Michael Popov as Special Administrator due to the original order being set to expire and continued the Motion to Set Aside the Appointment of Special Administrator to January 27, 2026.

At the January 27, 2026, Probate hearing in The Probate Case, the Court stayed the case pending the ongoing criminal matter in Solano County (Solano County Case No. F25-01634) (the "Solano County Criminal Proceedings"), continuing the next hearing to August 4, 2026.

Analysis

This case is simple interpleader matter where Plaintiff, a disinterested party who is a holder of Decedent Nickolai Popov's money market account, is seeking to be discharged from liability for Mr. Popov's account which is the subject of multiple adverse claims and deposit the funds with the Court to allow the adverse parties to resolve their claims regarding the subject account.

The Court does find any compelling reason to deny or continue this matter as requested by defendant Alexander Popov's Objection to Plaintiff's Motion for Substitution filed on July 3, 2025. Any ongoing dispute over the appropriate administrator of the decedent's estate may be relevant to whether and when the Court makes further determinations regarding the disposition of the interpleaded funds. However, that issue does not mitigate in favor of denying or delaying the requested change in the named parties.

Conclusion

Accordingly, **the Court GRANTS Plaintiff Umpqua Bank's motion to substitute Michael Popov, in his capacity as Special Administrator of the estate of Nickolai Popov, in place of decedent Defendant Nikolai Popov. The moving party to submit the order after hearing in compliance with CRC 3.1312.**

**6. 9:00 AM CASE NUMBER: C25-01243
CASE NAME: PATELCO CREDIT UNION VS. GREGORY M CLIFTON JR
HEARING ON DEMURRER TO: 2ND AMENDED CROSS-COMPLAINT
FILED BY: PATELCO CREDIT UNION
TENTATIVE RULING:**

The demurrer filed by cross-defendants is **SUSTAINED WITH LEAVE TO AMEND**. The motion to strike is **DENIED AS MOOT**. Cross-complainant may file and serve an a third amended cross-complaint on or before March 26, 2026.

Background

Patelco Credit Union initiated this action in May of 2025 in connection with overdrafts made by Gregory M. Clifton Jr, who is a member of Patelco. Patelco alleges Clifton made overdrafts during a period it was navigating a ransomware attack, thereby taking advantage of Patelco's need to shut